

EVA NEUROSCIENCE, INC. et al v. ALKEM LABORATORIES LIMITED et al

Plaintiff:	TEVA NEUROSCIENCE, INC. and AUSPEX PHARMACEUTICALS LLC
Defendant:	ALKEM LABORATORIES LIMITED and ASCEND LABORATORIES, LLC
Case Number:	2:2026cv06612
Filed:	June 5, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Cari Fais
Referring Judge:	Evelyn Padin
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
July 17, 2026	Filing 10 ORDER granting admission pro hac vice as to DAVID I. BERL, ALEXANDER S. ZOLAN, SHAUN P. MAHAFFY, CHLOE M. HOUDRE, AND MOLLY K. MOORE. Signed by Magistrate Judge Cari Fais on 7/17/2026. (dmr3)
July 16, 2026	Filing 9 Letter from Liza M. Walsh to the Hon. Cari Fais, U.S.M.J. re: PHV Application on Consent. (Attachments: #1 Certification of David I. Berl, #2 Certification of Alexander S. Zolan, #3 Certification of Shaun P. Mahaffy, #4 Certification of Chloe M. Houdre, #5 Certification of Molly K. Moore, #6 Supporting Certification of Liza M. Walsh, #7 Text of Proposed Order)(WALSH, LIZA)
June 11, 2026	Filing 8 WAIVER OF SERVICE Returned Executed by TEVA NEUROSCIENCE, INC., AUSPEX PHARMACEUTICALS LLC. ASCEND LABORATORIES, LLC waiver sent on 6/9/2026, answer due 8/10/2026. (WALSH, LIZA)
June	Filing 7 WAIVER OF SERVICE Returned Executed by TEVA NEUROSCIENCE,

Date Filed	Document Text
11, 2026	INC., AUSPEX PHARMACEUTICALS LLC. ALKEM LABORATORIES LIMITED waiver sent on 6/9/2026, answer due 8/10/2026. (WALSH, LIZA)
June 9, 2026	Filing 6 SUMMONS ISSUED as to ALKEM LABORATORIES LIMITED, ASCEND LABORATORIES, LLC. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (mj)
June 9, 2026	Filing 5 AO120 Patent Form filed. (Attachments: #1 See attached Complaint and Exhibits) (mj)
June 9, 2026	Filing 4 NOTICE of Appearance by CHRISTINE CLARK on behalf of AUSPEX PHARMACEUTICALS LLC, TEVA NEUROSCIENCE, INC. (CLARK, CHRISTINE)
June 9, 2026	Filing 3 NOTICE of Appearance by KATELYN O'REILLY on behalf of AUSPEX PHARMACEUTICALS LLC, TEVA NEUROSCIENCE, INC. (O'REILLY, KATELYN)
June 8, 2026	Case Assigned to Judge Evelyn Padin and Magistrate Judge Cari Fais. (ps)
June 5, 2026	Filing 2 Corporate Disclosure Statement by AUSPEX PHARMACEUTICALS LLC, TEVA NEUROSCIENCE, INC.. (WALSH, LIZA)
June 5, 2026	Filing 1 COMPLAINT against ALKEM LABORATORIES LIMITED, ASCEND LABORATORIES, LLC (Filing and Admin fee \$ 405 receipt number ANJDC-17509904) , Related Case Selected, filed by TEVA NEUROSCIENCE, INC., AUSPEX PHARMACEUTICALS LLC. (Attachments: #1 Exhibit A-F, #2 Exhibit G-L, #3 Civil Cover Sheet, #4 AO 120 Form I, #5 AO 120 Form II, #6 AO 120 Form III) (WALSH, LIZA)

I. Executive Summary and Procedural Information

Parties & Counsel:
Plaintiff: Teva Neuroscience, Inc. (Delaware) and Auspex Pharmaceuticals LLC (Delaware)
Defendant: Alkem Laboratories Limited (India) and Ascend Laboratories, LLC (New Jersey)
Plaintiff's Counsel: Walsh Pizzi Oreilly Falanga LLP
Case Identification: 2:26-cv-06612 , D.N.J., 06/05/2026
Venue Allegations: Venue is alleged to be proper in the District of New Jersey on the grounds that Defendant Alkem Laboratories Limited is a foreign corporation subject to personal

jurisdiction in the district, and Defendant Ascend Laboratories, LLC, resides in New Jersey and has a regular and established place of business there.

Core Dispute: Plaintiffs allege that Defendants' filing of an Abbreviated New Drug Application (ANDA) to market generic versions of Plaintiffs' AUSTEDO® XR (deutetrabenazine) tablets constitutes an act of infringement of twelve U.S. patents covering the drug's composition, formulation, and methods of use.

Technical Context: The technology relates to deutetrabenazine, a deuterated form of tetrabenazine, used for treating hyperkinetic movement disorders such as chorea associated with Huntington's disease and tardive dyskinesia.

Key Procedural History: This is a Hatch-Waxman action initiated under 35 U.S.C. § 271(e) (2) following Defendants' submission of ANDA No. 221495 containing a Paragraph IV certification, asserting that the patents-in-suit are invalid, unenforceable, or will not be infringed by the proposed generic products. The complaint was filed before the expiration of the 45-day period triggered by Plaintiffs' receipt of Defendants' notice letters.

Case Timeline

Date	Event
2012-09-18	U.S. Patent No. 9,550,780 Priority Date
2015-03-06	U.S. Patent Nos. 10,959,996 ; 11,357,772 ; 11,446,291 ; 11,564,917 ; 11,648,244 ; 12,016,858 Priority Date
2017-01-24	U.S. Patent No. 9,550,780 Issued
2017-03-15	U.S. Patent Nos. 11,179,386 ; 11,813,232 Priority Date
2020-06-10	U.S. Patent Nos. 11,311,488 ; 12,589,075 ; 12,599,598 Priority Date
2021-03-30	U.S. Patent No. 10,959,996 Issued
2021-11-23	U.S. Patent No. 11,179,386 Issued
2022-04-26	U.S. Patent No. 11,311,488 Issued
2022-06-14	U.S. Patent No. 11,357,772 Issued
2022-09-20	U.S. Patent No. 11,446,291 Issued
2023-01-31	U.S. Patent No. 11,564,917 Issued
2023-05-16	U.S. Patent No. 11,648,244 Issued
2023-11-14	U.S. Patent No. 11,813,232 Issued
2024-06-25	U.S. Patent No. 12,016,858 Issued

Date	Event
2026-03-31	U.S. Patent No. 12,589,075 Issued
2026-04-14	U.S. Patent No. 12,599,598 Issued
2026-04-23	Alkem's First Notice Letter to Plaintiffs
2026-05-18	Alkem's Second Notice Letter to Plaintiffs
2026-06-05	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 9,550,780 - Formulations Pharmacokinetics of Deuterated Benzoquinoline Inhibitors of Vesicular Monamine Transporter 2

The Invention Explained

Problem Addressed: The complaint does not contain the specification of the '780 patent to detail the problem addressed. However, the claims suggest a focus on obtaining a specific, stable crystalline form of the active pharmaceutical ingredient.

The Patented Solution: The patent claims a specific crystalline form of d6-tetrabenazine, designated "Form I" **Compl. ¶129** This form is defined by a set of characteristic peaks in an X-ray diffractogram, which provides a unique fingerprint for this particular solid-state arrangement of the molecule **Compl. ¶129** By defining and claiming this specific form, the invention provides a composition of matter with potentially distinct and advantageous properties, such as stability, solubility, or manufacturability, compared to other amorphous or crystalline forms.

Technical Importance: In pharmaceutical development, identifying and controlling the specific crystalline form (polymorph) of a drug is critical for ensuring consistent product quality, performance, and stability.

Key Claims at a Glance

The complaint asserts infringement of at least claim 1 **Compl. ¶108**

Independent Claim 1 contains the following essential elements:

- A compound that is crystalline d6-tetrabenazine Form I.
- Having a deuterium enrichment of no less than about 1%.
- Having an X-ray diffractogram comprising peaks, in terms of $2\theta \pm 0.2$, at 6.5, 12.2, 14.4, 22.4 and 23.4.
- Or a pharmaceutically acceptable salt or hydrate thereof. **Compl. ¶129**

U.S. Patent No. 10,959,996 - Methods for the Treatment of Abnormal Involuntary Movement Disorders

The Invention Explained

❑ **Problem Addressed:** The patent describes a need for improved compositions and dosing regimens for treating abnormal involuntary movements, noting that existing therapies like tetrabenazine have limitations '996 Patent, col. 3:1-7

❑ **The Patented Solution:** The patent provides a specific method for transitioning a patient from a daily dose of tetrabenazine to a corresponding, therapeutically effective initial dose of deutetabenazine '996 Patent, abstract This method comprises discontinuing tetrabenazine and, on the next day, administering a specific initial dose of deutetabenazine based on the patient's prior tetrabenazine dosage '996 Patent, col. 8:36-59 This provides a defined protocol for physicians to switch patients to the deuterated drug.

❑ **Technical Importance:** Providing a clinically-defined dose-conversion protocol facilitates the safe and effective adoption of a new drug by mitigating uncertainty for prescribing physicians and improving patient outcomes during the switch.

Key Claims at a Glance

❑ The complaint asserts infringement of at least claim 1 Compl. ¶118

❑ **Independent Claim 1** contains the following essential elements:

❑ A method of transitioning a human from tetrabenazine to deutetabenazine.

❑ For the treatment of chorea associated with Huntington's disease.

❑ Comprising: a) discontinuing a daily amount of tetrabenazine; and b) administering an initial daily amount of deutetabenazine the next day to the human.

❑ Wherein the daily amount of tetrabenazine and the initial total daily amount of deutetabenazine are one of eight specific dosage pairs (e.g., 12.5 mg tetrabenazine to 6 mg deutetabenazine). Compl. ¶35

U.S. Patent No. 11,179,386 - Analogs of Deutetabenazine, Their Preparation and Use

❑ **Technology Synopsis:** This patent claims a pharmaceutical composition in tablet form containing deutetabenazine with a specific, low limit on the amount of a particular impurity, identified as "Compound 2." The impurity level is measured by a specific HPLC method Compl. ¶41 This addresses the need for high-purity drug products to ensure safety and efficacy.

❑ **Asserted Claims:** At least claim 1 Compl. ¶128

❑ **Accused Features:** The proposed generic deutetabenazine tablets are alleged to infringe Compl. ¶128

U.S. Patent No. 11,311,488 - Osmotic Dosage Forms Comprising Deutetabenazine and Methods of Use Thereof

❑ **Technology Synopsis:** This patent claims a once-daily osmotic oral dosage form for deutetabenazine. The technology involves a multi-layer tablet core (active and push layers), a semipermeable layer with a port, and an optional immediate-release coating, designed to provide controlled, extended release of the drug over a 24-hour period Compl. ¶47

❑ **Asserted Claims:** At least claim 1 **Compl. ¶138**

❑ **Accused Features:** The proposed generic deutetrabenazine extended-release tablets are alleged to infringe **Compl. ¶138**

U.S. Patent No. 11,357,772 - Methods for the Treatment of Abnormal Involuntary Movement Disorders

❑ **Technology Synopsis:** This patent claims a method for treating abnormal involuntary movement by administering an initial dose of deutetrabenazine, monitoring the patient's response and tolerability, and then titrating the dose upwards or downwards in 6 mg/day increments to achieve adequate control **Compl. ¶53** This covers a dose-titration regimen for optimizing therapy.

❑ **Asserted Claims:** At least claim 1 **Compl. ¶148**

❑ **Accused Features:** The use of the proposed generic product as directed by its labeling is alleged to infringe **Compl. ¶150**

U.S. Patent No. 11,446,291 - Methods for the Treatment of Abnormal Involuntary Movement Disorders

❑ **Technology Synopsis:** This patent claims a method of transitioning a patient from tetrabenazine to deutetrabenazine for the treatment of tardive dyskinesia. The method involves specific dosage conversion pairs, similar to the '996 patent but for a different indication **Compl. ¶59**

❑ **Asserted Claims:** At least claim 1 **Compl. ¶158**

❑ **Accused Features:** The use of the proposed generic product as directed by its labeling is alleged to infringe **Compl. ¶160**

U.S. Patent No. 11,564,917 - Methods for the Treatment of Abnormal Involuntary Movement Disorders

❑ **Technology Synopsis:** This patent claims a method of treating tardive dyskinesia in specific patient populations defined by baseline ECG (electrocardiogram) QTcF values. The method involves administering a dose of deutetrabenazine of less than or equal to about 24 mg, where the treatment results in an improvement in motor function and a maximal QTcF increase of less than 5 ms **Compl. ¶65**

❑ **Asserted Claims:** At least claim 1 **Compl. ¶168**

❑ **Accused Features:** The use of the proposed generic product as directed by its labeling is alleged to infringe **Compl. ¶170**

U.S. Patent No. 11,648,244 - Methods for the Treatment of Abnormal Involuntary Movement Disorders

❑ **Technology Synopsis:** This patent claims a method of treating tardive dyskinesia in a human subject defined by age and history of dopamine receptor antagonist use. The method involves administering a total daily amount of deutetrabenazine from about 24 mg to about 48 mg, resulting in improved motor function with no clinically significant adverse event **Compl. ¶71**

❑ **Asserted Claims:** At least claim 1 **Compl. ¶178**

❑ **Accused Features:** The use of the proposed generic product as directed by its labeling is alleged to infringe [Compl. ¶180](#)

U.S. Patent No. 11,813,232 - Analogs of Deutetrabenazine, Their Preparations and Use

❑ **Technology Synopsis:** This patent claims a process for preparing a deutetrabenazine tablet that has a low level of "Compound 2" impurity after one month of storage. The process requires starting with a deutetrabenazine drug substance that itself has an even lower, specified limit of Compound 2 [Compl. ¶77](#) This protects the final drug product's stability and purity.

❑ **Asserted Claims:** At least claims 1 and 2 [Compl. ¶188](#)

❑ **Accused Features:** The manufacture of the proposed generic product is alleged to infringe the process claim, and the product itself is alleged to infringe the product-by-process claim [Compl. ¶¶188, 190](#)

U.S. Patent No. 12,016,858 - Methods for the Treatment of Abnormal Involuntary Movement Disorders

❑ **Technology Synopsis:** This patent claims a method for treating abnormal involuntary movement that starts with an initial daily dose of 12 mg of deutetrabenazine. The method includes steps for monitoring and titrating the dose upwards or downwards in 6 mg/day increments based on efficacy and tolerability [Compl. ¶84](#)

❑ **Asserted Claims:** At least claim 1 [Compl. ¶198](#)

❑ **Accused Features:** The use of the proposed generic product as directed by its labeling is alleged to infringe [Compl. ¶200](#)

U.S. Patent No. 12,589,075 - Osmotic Dosage Forms Comprising Deutetrabenazine and Methods of Use Thereof

❑ **Technology Synopsis:** This patent claims a method of administering a once-daily osmotic dosage form of deutetrabenazine to treat a hyperkinetic movement disorder. The claim recites the structural features of the osmotic dosage form, which are substantially similar to those claimed in the ['488](#) patent [Compl. ¶90](#)

❑ **Asserted Claims:** At least claim 1 [Compl. ¶208](#)

❑ **Accused Features:** The use of the proposed generic product as directed by its labeling is alleged to infringe [Compl. ¶210](#)

U.S. Patent No. 12,599,598 - Osmotic Dosage Forms Comprising Deutetrabenazine and Methods of Use Thereof

❑ **Technology Synopsis:** This patent claims a method for transitioning a patient from a twice-daily deutetrabenazine regimen to a once-daily osmotic dosage form regimen. The claim recites the structural features of the osmotic dosage form, which are substantially similar to those in the '488 and ['075](#) patents [Compl. ¶96](#)

❑ **Asserted Claims:** At least claim 1 [Compl. ¶218](#)

Accused Features: The use of the proposed generic product as directed by its labeling is alleged to infringe [Compl. ¶220](#)

III. The Accused Instrumentality

Product Identification

The accused instrumentalities are Defendants' proposed generic versions of AUSTEDO® XR (deutetrabenazine) oral extended-release tablets, identified as "Alkem's ANDA Products" [Compl. ¶1](#)

Functionality and Market Context

The complaint alleges that Alkem seeks FDA approval to market deutetrabenazine extended-release tablets in 6 mg, 12 mg, and 24 mg dosage strengths [Compl. ¶100](#) [Compl. ¶102](#) These products are intended to be generic equivalents to Plaintiffs' AUSTEDO® XR tablets, which are approved for treating chorea associated with Huntington's disease and tardive dyskinesia [Compl. ¶3](#) The act of infringement alleged is the submission of ANDA No. 221495 to the FDA, which is a statutory act of infringement under the Hatch-Waxman Act designed to resolve patent disputes before the generic drug enters the market [Compl. ¶1](#) [Compl. ¶107](#) The complaint includes a chemical structure diagram of Deutetrabenazine [Compl. p. 9](#)

IV. Analysis of Infringement Allegations

'780 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A compound that is crystalline d6-tetrabenazine Form I...	On information and belief, the active ingredient in Alkem's ANDA Products, deutetrabenazine, will be the specific crystalline Form I.	¶108	col. 27:36-37
...having deuterium enrichment of no less than about 1%...	On information and belief, the deutetrabenazine in Alkem's ANDA Products will meet this deuterium enrichment level.	¶108	col. 27:37-38
...and having an X-ray diffractogram comprising peaks, in crystalline form of deutetrabenazine in terms of $2\theta \pm 0.2$, at 6.5, 12.2, 14.4, 22.4 and 23.4...	On information and belief, the Alkem's ANDA Products will exhibit these characteristic XRD peaks.	¶108	col. 27:38-42

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
...or a pharmaceutically acceptable salt or hydrate thereof.	On information and belief, Alkem's ANDA Products will comprise the claimed compound or a salt or hydrate thereof.	¶108	col. 27:43-44

Identified Points of Contention:

Evidentiary Questions: The core of the dispute for the '780 patent will be factual. The complaint alleges infringement on "information and belief" Compl. ¶108, which is standard at the pleading stage of an ANDA case before discovery of the ANDA's contents. The central question for the court will be whether the deutetrabenazine in Alkem's proposed product is, in fact, the specific crystalline "Form I" as defined by the patent's claims. This raises the question of what analytical data (e.g., XRD) Alkem has provided to the FDA and what it will reveal in discovery.

Scope Questions: A potential issue may be the scope of "about 1%" for deuterium enrichment and the "±0.2" range for the 2θ peaks Compl. ¶129 The parties may dispute whether Alkem's product, if its characteristics are near but not identical to these values, falls within the claimed range.

'996 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of transitioning a human from tetrabenazine to deutetrabenazine for the treatment of chorea associated with Huntington's disease...	On information and belief, the proposed labeling for Alkem's ANDA Products will instruct or encourage physicians to perform this transition method for this indication.	¶120	col. 34:6-9
...comprising: a) discontinuing a daily amount of tetrabenazine; and b) administering an initial daily amount of deutetrabenazine the next day to the human...	The complaint alleges that Alkem's proposed labeling will direct the specific claimed sequence of discontinuing one drug and starting the other on the following day.	¶120	col. 34:10-14
...wherein the daily amount of tetrabenazine is [specific value, e.g., 12.5 mg] and the initial total daily amount of deutetrabenazine is [specific value, e.g., 6 mg]...	The complaint alleges that Alkem's proposed labeling will recommend the specific dose-conversion pairs recited in the claim.	¶120	col. 34:15-34

Identified Points of Contention:

Inducement Questions: The infringement allegation for this method claim hinges on induced infringement. **Compl. ¶121** A primary point of contention will be whether the language in Alkem's proposed product label rises to the level of actively encouraging, recommending, or promoting the claimed method steps, as required to prove inducement. The court will need to analyze the specific text of the proposed label to determine if it teaches the claimed transition method.

Label Carve-Out Questions: A potential defense strategy in such cases is a "carve-out," where a generic manufacturer attempts to omit patented methods of use from its label. This raises the question of whether Alkem has attempted such a carve-out and, if so, whether it is legally sufficient to avoid inducement. The complaint does not provide the proposed label for analysis.

V. Key Claim Terms for Construction

"crystalline d6-tetrabenazine Form I"

Source: '780 Patent, Claim 1

Context and Importance: This term is the subject of the composition of matter claim. The definition is critical because polymorphism-the existence of different crystalline forms of the same compound-is common in pharmaceuticals, and different forms can have different properties. Infringement will depend entirely on whether Alkem's product contains the specific polymorph claimed as "Form I."

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The patent does not appear to have been provided. A party arguing for a broader interpretation might suggest that "Form I" is defined by the presence of the most characteristic peaks, and that the absence of minor peaks or slight shifts in peak positions does not place a sample outside the scope of the claim.

Evidence for a Narrower Interpretation: The claim explicitly defines Form I by a list of five specific X-ray diffractogram peaks at specific 2θ values. **Compl. ¶29** A party arguing for a narrower construction will likely contend that a compound must exhibit all five of these recited peaks within the specified margin of error (± 0.2) to meet the claim limitation.

"transitioning a human from tetrabenazine to deutetrabenazine"

Source: '996 Patent, Claim 1

Context and Importance: This phrase defines the core action of the asserted method claim. The infringement allegation is for inducement, based on Alkem's proposed product labeling. **Compl. ¶120** **Compl. ¶121** The construction of "transitioning" is therefore central to determining whether the instructions on the label actually teach the patented method.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The patent's general description refers to "new dosing regimens" and "methods for the treatment" **'996 Patent, col. 1:11-16** A party might argue this supports a broad reading of "transitioning" to cover any physician-guided switch from one therapy to another.

□ **Evidence for a Narrower Interpretation:** Claim 1 itself provides a very specific definition of the transition: "discontinuing a daily amount of tetrabenazine; and administering an initial daily amount of deutetrabenazine the next day" with specific dosage pairings [Compl. ¶135](#) The patent specification further details the "overnight switch" protocol used in clinical trials ['996 Patent, FIG. 5](#) A party arguing for a narrow construction will assert that "transitioning" is strictly limited to this "stop-one-day-start-the-next" sequence with the claimed dose pairings.

VI. Other Allegations

□ **Indirect Infringement:** The complaint alleges active inducement of infringement for all asserted patents, stating that Alkem plans and intends for its products to be used in an infringing manner, particularly by following the instructions on the proposed product labeling (e.g., [Compl. ¶111](#); [Compl. ¶121](#)). The complaint also alleges contributory infringement, stating that Alkem knows its products are especially made or adapted for infringing the patents and are not suitable for substantial non-infringing use (e.g., [Compl. ¶112](#); [Compl. ¶122](#)).

□ **Willful Infringement:** The complaint alleges that Alkem has acted with "full knowledge" of the patents-in-suit and "without a reasonable basis for believing that it would not be liable for infringing" them (e.g., [Compl. ¶114](#); [Compl. ¶124](#)). This allegation is predicated on Alkem's filing of an ANDA with a Paragraph IV certification, which requires the generic applicant to certify against the patents listed in the FDA's Orange Book, thereby establishing pre-suit knowledge of the patents.

VII. Analyst's Conclusion: Key Questions for the Case

□ A primary question for the composition patents (e.g., '780, ['386](#), ['232](#), '488, '075, ['598](#)) will be **evidentiary and factual:** does Alkem's proposed generic product, as described in its ANDA, contain the specific crystalline form of deutetrabenazine, fall within the claimed impurity profiles, or embody the specific osmotic-release formulations claimed by Plaintiffs? The outcome for these patents will depend almost entirely on a comparison of the ANDA specifications with the patent claims.

□ A central issue for the method of use patents (e.g., '996, ['772](#), ['291](#), ['917](#), ['244](#), ['858](#)) will be one of **induced infringement:** does the language of Alkem's proposed product label, which has not yet been produced, actively instruct or encourage physicians and patients to perform the specific, multi-step methods of dose transitioning, titration, or administration to specific patient populations as claimed in the patents?

□ A key legal and strategic question will be one of **patent thicket navigation:** with twelve patents asserted covering the compound, its formulation, and its methods of use, the case will involve managing a complex web of overlapping claims. This raises the question of whether any single patent or claim group will emerge as the primary driver of the litigation, or if the sheer number of asserted patents will be a strategic factor in itself aimed at complicating the path for a generic entrant.

COMPLAINT Plaintiffs Teva Neuroscience, Inc., (“Teva”) and Auspex Pharmaceuticals LLC (“Auspex”) (collectively, “Plaintiffs”), by their attorneys, for their Complaint against Defendants Alkem Laboratories Limited and Ascend Laboratories, LLC, (collectively, “Alkem”), allege as follows: 1. This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100 et seq., which arises out of the submission by Alkem Laboratories Limited of Abbreviated New Drug Application (“ANDA”) No. 221495 (“Alkem’s ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to commercially manufacture, use, offer for sale, sell, and/or import generic versions (“Alkem’s ANDA Products”) of Plaintiffs’ AUSTEDO® XR (deutetrabenazine) products prior to the expiration of U.S. Patent Nos. 9,550,780 (the “’780 patent”), 10,959,996 (the “’996 patent”), 11,179,386 (the “’386 patent”), 11,311,488 (the “’488 patent”), 11,357,772 (the “’772 patent”), 11,446,291 (the “’291 patent”), 11,564,917 (the “’917 patent”), 11,648,244 (the “’244 patent”), 11,813,232 (the “’232 patent”), 12,016,858 (the “’858 patent”), 12,589,075 (the “’075 patent”), and 12,599,598 (the “’598 patent”). 1 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 2 of 60 PageID: 2 Collectively, the ’780 patent, the ’996 patent, the ’386 patent, the ’488 patent, the ’772 patent, the ’291 patent, the ’917 patent, the ’244 patent, the ’232 patent, the ’858 patent, the ’075 patent, and the ’598 patent are referred to herein as the “Patents-in-Suit.” PARTIES 2. Plaintiff Teva Neuroscience, Inc., is a Delaware corporation with its principal place of business at 11100 Nall Ave., Overland Park, KS 66211. Teva Neuroscience, Inc., is registered to do business in the state of New Jersey. 3. Teva Neuroscience, Inc., is the holder of New Drug Application (“NDA”) No. 216354 for AUSTEDO® XR (deutetrabenazine) 6 mg, 12 mg, 18 mg, 24 mg, 30 mg, 36 mg, 42 mg, and 48 mg Tablet, Extended Release, Oral. Teva’s AUSTEDO® XR tablets are approved by the FDA for the treatment in adults of chorea associated with Huntington’s disease and tardive dyskinesia. 4. Plaintiff Auspex is a limited liability company organized under the laws of the state of Delaware with its principal place of business at 400 Interpace Parkway #3, Parsippany, New Jersey 07054. 5. Upon information and belief, Defendant Alkem Laboratories Limited is a company organized and existing under the laws of the Republic of India with its principal place of business at Devashish Building, Alkem House, Senapati Bapat Road, Lower Parel, Mumbai, 400 013, India. Upon information and belief, Alkem Laboratories Limited is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products through various operating subsidiaries, including Ascend Laboratories, LLC. 6. Upon information and belief, Ascend Laboratories, LLC, is wholly owned by ThePharmaNetwork, LLC. On information and belief, ThePharmaNetwork, LLC, has a principal place of business at 180 Summit Ave., Suite 200, Montvale, New Jersey 07645. Upon information 2 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 3 of 60 PageID: 3 and belief, ThePharmaNetwork, LLC, is a subsidiary of S&B Holdings S.a.r.l, which is wholly owned by Alkem Laboratories Limited. Therefore, Alkem Laboratories Limited wholly owns Ascend Laboratories, LLC, through its ownership of S&B Holdings S.a.r.l. and ThePharmaNetwork, LLC.1 7. Upon information and belief, defendant Ascend Laboratories, LLC, is a limited liability company organized and existing under the laws of the state of New Jersey with its principal place of business at 125 Rt 202/206, Suite 15, Bedminster, New Jersey 07921. 8. On information and belief, Alkem Laboratories Limited is in the business of, among other things, developing, preparing, manufacturing, selling, marketing,

and distributing generic drugs, including distributing, selling and marketing generic drugs throughout the United States, including within the state of New Jersey, through its own actions and through the actions of its agents and subsidiaries from which Alkem Laboratories Limited derives a substantial portion of its revenue. 9. Upon information and belief, Alkem Laboratories Limited and Ascend Laboratories, LLC, acted in concert to prepare and submit Alkem's ANDA to the FDA. 10. Upon information and belief, Alkem Laboratories Limited and Ascend Laboratories, LLC, know and intend that upon approval of Alkem's ANDA, Alkem Laboratories Limited will manufacture Alkem's ANDA Products and, including with and through its subsidiary Ascend Laboratories, LLC, will directly or indirectly market, sell, and distribute Alkem's ANDA Products throughout the United States, including in New Jersey. 1 See Background, ASCEND LABORATORIES, [Ascendlaboratories.com/Home/Background](https://ascendlaboratories.com/Home/Background) (last visited May 26, 2026). 3 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 4 of 60 PageID: 4 11. On information and belief, following any FDA approval of Alkem's ANDA, Alkem Laboratories Limited and Ascend Laboratories, LLC, will act in concert to distribute and sell Alkem's ANDA Products throughout the United States, including within New Jersey. JURISDICTION Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 13. This Court has subject-matter jurisdiction over this action pursuant to 28 U.S.C. §§ 12. 1331, 1338(a), 2201, and 2202. 14. Based on the facts and causes of action alleged herein, and for additional reasons to be further developed through discovery if necessary, this Court has personal jurisdiction over Alkem. 15. Alkem Laboratories Limited is subject to personal jurisdiction in New Jersey because, among other things, Alkem Laboratories Limited itself and through its wholly owned subsidiary Ascend Laboratories, LLC, has purposefully availed itself of the benefits and protections of New Jersey's laws such that it reasonably should anticipate being haled into court here. On information and belief, Alkem Laboratories Limited itself and through its wholly owned subsidiary Ascend Laboratories, LLC, develops, manufactures, imports, markets, offers to sell, and/or sells generic drugs throughout the United States, including in the state of New Jersey, and therefore transacts business within the state of New Jersey related to Plaintiffs' claims, and/or has engaged in systematic and continuous business contacts within the state of New Jersey. In addition, Alkem Laboratories Limited is subject to personal jurisdiction in New Jersey because, on information and belief, it controls and dominates Ascend Laboratories, LLC, and therefore the activities of Ascend Laboratories, LLC, in this jurisdiction are attributed to Alkem Laboratories Limited. 4 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 5 of 60 PageID: 5 16. Alternatively, if Alkem Laboratories Limited's connections with New Jersey, including its connections with Ascend Laboratories, LLC, are found to be insufficient to confer personal jurisdiction, then, upon information and belief, Alkem Laboratories Limited is not subject to jurisdiction in any state's courts of general jurisdiction, and exercising jurisdiction over Alkem Laboratories Limited in New Jersey is consistent with the United States Constitution and laws. See Fed. R. Civ. P. 4(k)(2). 17. Ascend Laboratories, LLC, is subject to personal jurisdiction in New Jersey because, among other things, it has purposely availed itself of the benefits and protections of New Jersey's laws such that it reasonably should anticipate being haled into court here. For example, Ascend Laboratories, LLC's principal place of business, including its head office, is in New Jersey. In addition, on information and belief, Ascend Laboratories, LLC, develops, manufactures, imports, markets, offers to sell, and/or sells generic drugs throughout the United States, including in the state of New Jersey, and therefore transacts business within the state of New Jersey related to Plaintiffs' claims, and/or has engaged in systematic and continuous business contacts within the state of New Jersey. 18. In addition, this Court has personal jurisdiction over Alkem because, among other things, on information and belief: (1) Alkem filed Alkem's

ANDA for the purpose of seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products in the United States, including in New Jersey; and (2) upon approval of Alkem's ANDA, Alkem will market, distribute, offer for sale, sell, and/or import Alkem's ANDA Products in the United States, including in New Jersey, and will derive substantial revenue from the use or consumption of Alkem's ANDA Products in New Jersey. On information and belief, upon approval of Alkem's ANDA, Alkem's ANDA Products will, among other things, be 5 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 6 of 60 PageID: 6 marketed, distributed, offered for sale, sold, and/or imported in New Jersey; prescribed by physicians practicing in New Jersey; dispensed by pharmacies located within New Jersey; and/or used by patients in New Jersey, all of which would have a substantial effect on New Jersey. 19. In addition, this Court has personal jurisdiction over Alkem because Alkem Laboratories Limited and Ascend Laboratories, LLC, regularly (1) engage in patent litigation concerning Alkem's ANDA Products in this District, (2) do not contest personal jurisdiction in this District, and (3) purposefully avail themselves of the rights and benefits of this Court by asserting claims and/or counterclaims in this District. See *Braintree Lab'ys, Inc. v. Alkem Lab'ys Ltd.*, 1:25-cv-12118, Dkt. No. 7 (D.N.J. Aug 25, 2025); *Axsome Malta Ltd. v. Alkem Lab'ys Ltd.*, 2:24-cv-10617, Dkt. No. 9 (D.N.J. Feb. 7, 2025); *AstraZeneca AB v. Alkem Lab'ys Ltd.*, 3:15-cv- 06609, Dkt. No. 10 (D.N.J. 2015); and *Grunenthal Gmbh v. Actavis Elizabeth LLC*, 2:13-cv- 04507, Dkt. No. 17 (D.N.J. Aug. 28, 2013). 20. For the above reasons, it would not be unfair or unreasonable for Alkem Laboratories Limited or Ascend Laboratories, LLC, to litigate this Action in this District, and the Court has personal jurisdiction here over both entities. VENUE Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 22. Venue is proper in this District pursuant to 28 U.S.C. §§ 1391 and 1400(b) with 21. respect to Alkem Laboratories Limited at least because, on information and belief, Alkem Laboratories Limited is a foreign corporation that may be sued in any judicial district in which it is subject to the court's personal jurisdiction. 23. Venue is proper in this District pursuant to 28 U.S.C. §§ 1391 and 1400(b) as to Ascend Laboratories, LLC, because, on information and belief, Ascend Laboratories, LLC, resides in New Jersey; because on information and belief, Ascend Laboratories, LLC, has a regular and 6 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 7 of 60 PageID: 7 established place of business in New Jersey; and because, on information and belief, Ascend Laboratories, LLC, has committed or aided, abetted, contributed to, and/or participated in the commission of acts of infringement of the Patents-in-Suit that will lead to foreseeable harm and injury to Plaintiffs by preparing or assisting in preparing Alkem's ANDA in New Jersey and/or with the intention of seeking to market Alkem's ANDA Products nationwide, including within New Jersey. BACKGROUND The '780 Patent Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 25. The '780 patent, entitled "Formulations Pharmacokinetics of Deuterated 24. Benzoquinoline Inhibitors of Vesicular Monamine Transporter 2" (Exhibit A), duly and legally issued on January 24, 2017. 26. Auspex is the owner and assignee of the '780 patent. 27. The '780 patent lists as inventors Andreas Sommer, Chengzhi Zhang, John Carter, John Arthur, Margaret Bradbury, Thomas Gant, and Manouchehr Shahbaz. 28. The '780 patent is listed in connection with AUSTEDO® XR in the Approved Drug Products with Therapeutic Equivalence Evaluations (an FDA publication commonly referred to as the "Orange Book"). 29. Claim 1 of the '780 patent claims:

1. A compound that is crystalline d6-tetrabenazine Form I having deuterium enrichment of no less than about 1%, and having an X-ray diffractogram comprising peaks, in terms of

20±0.2, at 6.5, 12.2, 14.4, 22.4 and 23.4; or a pharmaceutically acceptable salt or hydrate thereof. The '996 Patent

2.

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 7 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 8 of 60 PageID: 8 31. The '996 patent, entitled "Methods for the Treatment of Abnormal Involuntary Movement Disorders" (Exhibit B), duly and legally issued on March 30, 2021. 32. Auspex is the owner and assignee of the '996 patent. 33. The '996 patent lists as inventors David Stamler and Michael Fangching Huang. 34. The '996 patent is listed in connection with AUSTEDO® XR in the Orange Book. 35. Claim 1 of the '996 patent claims:

1. A method of transitioning a human from tetrabenazine to deutetrabenazine for the treatment of chorea associated with Huntington's disease, comprising: a) discontinuing a daily amount of tetrabenazine; and b) administering an initial daily amount of deutetrabenazine the next day to the human, wherein the daily amount of tetrabenazine is 12.5 mg and the initial total daily amount of deutetrabenazine is 6 mg; or wherein the daily amount of tetrabenazine is 25 mg and the initial total daily amount of deutetrabenazine is 12 mg; or wherein the daily amount of tetrabenazine is 37.5 mg and the initial total daily amount of deutetrabenazine is 18 mg; or wherein the daily amount of tetrabenazine is 50 mg and the initial total daily amount of deutetrabenazine is 24 mg; or wherein the daily amount of tetrabenazine is 62.5 mg and the initial total daily amount of deutetrabenazine is 30 mg; or wherein the daily amount of tetrabenazine is 75 mg and the initial total daily amount of deutetrabenazine is 36 mg; or wherein the daily amount of tetrabenazine is 87.5 mg and the initial total daily amount of deutetrabenazine is 42 mg; or wherein the daily amount of tetrabenazine is 100 mg and the initial total daily amount of deutetrabenazine is 48 mg. The '386 Patent

2.

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 8 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 9 of 60 PageID: 9 37. The '386 patent, entitled "Analogues of Deutetrabenazine, Their Preparation and Use" (Exhibit C), duly and legally issued on November 23, 2021. 38. Auspex is the owner and assignee of the '386 patent. 39. The '386 patent lists as inventors Chengzhi Zhang and James Kerr. 40. The '386 patent is listed in connection with AUSTEDO® XR in the Orange Book. 41. Claim 1 of the '386 patent claims:

1. A pharmaceutical composition in the form of a tablet comprising an admixture of a deutetrabenazine drug substance and a pharmaceutically acceptable carrier, wherein the deutetrabenazine drug substance comprises 5 mg to 30 mg of deutetrabenazine; and Compound 2 in an amount that is not more than 0.15 area %, relative to the concentration of the deutetrabenazine in the tablet, based on a determination by an HPLC method comprising a C18, 150x4.6 mm, 3.5 µm column and a photodiode array/ultraviolet detector at 220 nm The '488 Patent

2.

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 9 Case 2:26-cv-06612-EP-CF Document 1 Filed 06/05/26 Page 10 of 60 PageID: 10 43. The '488 patent, entitled "Osmotic Dosage Forms Comprising Deutetrabenazine and Methods of Use Thereof"

(Exhibit D), duly and legally issued on April 26, 2022. 44. Auspex is the owner and assignee of the '488 patent. 45. The '488 patent lists as inventors Parag Shah, Mayank Joshi, Soumen Pattanayek, Divyang Patel, and Sandeep Pandita. 46. The '488 patent is listed in connection with AUSTEDO® XR in the Orange Book. 47. Claim 1 of the '488 patent claims:

1. A once daily osmotic oral dosage form for administration of deutetrabenazine to a subject in need thereof comprising: a. a tablet core comprising an active layer and a push layer, wherein the active layer comprises an amount of deutetrabenazine microparticles and an active layer control release agent, and wherein the push layer comprises an osmotic agent and a push layer control release agent, and an optional tablet seal coat on the outer surface of the tablet core; b. a semipermeable layer surrounding the tablet core; c. a port extending through the semipermeable layer into the tablet core; and d. an optional immediate release coating external to the semipermeable layer comprising a second amount of deutetrabenazine microparticles, wherein the dosage comprises from about 6 mg to about 48 mg deutetrabenazine in the form of deutetrabenazine microparticles and wherein about 70%-80% of the total amount of deutetrabenazine microparticles present in the dosage form is present within the active layer and wherein about 20%- 30% of the total amount of deutetrabenazine microparticles present in the dosage form, is present within the immediate release coating; and wherein the deutetrabenazine microparticles have a D90 of 15 µm, a D50 10 µm, and/or a D10 of 3 µm. The '772 Patent Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

2. The '772 patent, entitled "Methods for the Treatment of Abnormal Involuntary

3.

Movement Disorders" (Exhibit E), duly and legally issued on June 14, 2022. 50. Auspex is the owner and assignee of the '772 patent.

51. The '772 patent lists as inventors David Stamler and Michael Huang.

52. The '772 patent is listed in connection with AUSTEDO® XR in the Orange Book.

53. Claim 1 of the '772 patent claims:

1. A method for treating abnormal involuntary movement in a subject comprising:

- a) administering to the subject an initial daily amount of deutetrabenazine of at least about 6 mg per day;
- b) determining after about one week the degree of control of abnormal involuntary movement achieved with the initial daily amount and the tolerability of the initial daily amount;
- c) increasing the daily amount of the deutetrabenazine upward by 6 mg/day or more to a subsequent daily amount if the degree of control of abnormal involuntary movement is inadequate and the initial daily amount is tolerable;
- d) optionally, repeating steps b) and c) until the degree of control of

abnormal involuntary movement is adequate and the daily amount of the deutetrabenazine is tolerable; and

e) if any subsequent amount is not tolerated, decreasing the daily amount downward by 6 mg/day or more to a subsequent daily amount.

The '291 Patent

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

55. The '291 patent, entitled "Methods for the Treatment of Abnormal Involuntary
54.

Movement Disorders" (Exhibit F), duly and legally issued on September 20, 2022.

56. Auspex is the owner and assignee of the '291 patent.

57. The '291 patent lists as inventors David Stamler and Michael Fangching Huang.

58. The '291 patent is listed in connection with AUSTEDO® XR in the Orange Book.

59. Claim 1 of the '291 patent claims:

1. A method of transitioning a human from tetrabenazine to deutetrabenazine for the treatment of tardive dyskinesia, comprising:

a) discontinuing a daily amount of tetrabenazine; and

b) administering an initial daily amount of deutetrabenazine the next day to the human,

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wherein the daily amount of tetrabenazine is 12.5 mg and the initial

total daily amount of deutetrabenazine is 6 mg; or

wherein the daily amount of tetrabenazine is 25 mg and the initial total

daily amount of deutetrabenazine is 12 mg; or

wherein the daily amount of tetrabenazine is 37.5 mg and the initial

total daily amount of deutetrabenazine is 18 mg; or

wherein the daily amount of tetrabenazine is 50 mg and the initial

total daily amount of deutetrabenazine is 24 mg; or

wherein the daily amount of tetrabenazine is 62.5 mg and the initial

total daily amount of deutetrabenazine is 30 mg; or

wherein the daily amount of tetrabenazine is 75 mg and the initial

total daily amount of deutetrabenazine is 36 mg; or

wherein the daily amount of tetrabenazine is 87.5 mg and the initial total daily amount of deutetabenazine is 42 mg; or
wherein the daily amount of tetrabenazine is 100 mg and the initial total daily amount of deutetabenazine is 48 mg.

The '917 Patent

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

61. The '917 patent, entitled "Methods for the Treatment of Abnormal Involuntary
60.

Movement Disorders" (Exhibit G), duly and legally issued on January 31, 2023.

62. Auspex is the owner and assignee of the '917 patent.

63. The '917 patent lists as inventors David Stamler and Michael Fangching Huang.

64. The '917 patent is listed in connection with AUSTEDO® XR in the Orange Book.

65. Claim 1 of the '917 patent claims:

1. A method of treating abnormal involuntary movements in a human subject
having Tardive Dyskinesia;

wherein if the subject is male, the subject does not have a QTcF value >450 ms
on a 12-lead electrocardiogram (ECG) at baseline; or

wherein if the subject is female, the subject does not have a QTcF value >460
ms on a 12-lead electrocardiogram (ECG) at baseline;

comprising:

administering to the subject a dose of deutetabenazine of less than or equal to
about 24 mg;

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wherein the administration results in an improvement in motor function in the
subject, as compared to the subject's motor function prior to the administration,
and a maximal increase in the subject's QTcF of less than 5 ms.

The '244 Patent

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

67. The '244 patent, entitled "Methods for the Treatment of Abnormal Involuntary
66.

Movement Disorders" (Exhibit H), duly and legally issued on May 16, 2023.

68. Auspex is the owner and assignee of the '244 patent.

69. The '244 patent lists as inventors David Stamler and Michael Fangching Huang.

70. The '244 patent is listed in connection with AUSTEDO® XR in the Orange Book.

71. Claim 1 of the '244 patent claims:

1. A method of treating abnormal involuntary movements in a human subject

having Tardive Dyskinesia;

wherein the subject is sixty years of age or older, and has a history of dopamine receptor antagonist use for at least one month;

or wherein the subject is not sixty years of age or older, and has a history of dopamine receptor antagonist use for at least three months;

comprising:

administering to the subject, in one or two doses, a total daily amount of

deutetrabenazine of from about 24 mg to about 48 mg;

wherein the administration results in an improvement in motor function in the subject, as compared to the subject's motor function prior to the administration, and no clinically significant adverse event.

The '232 Patent

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

73. The '232 patent, entitled "Analogues of Deutetrabenazine, Their Preparations and Use" (Exhibit I), duly and legally issued on November 14, 2023.

74. Auspex is the owner and assignee of the '232 patent.

75. The '232 patent lists as inventors Chengzhi Zhang and James Kerr.

76. The '232 patent is listed in connection with AUSTEDO® XR in the Orange Book.

77.

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78. Claim 1 of the '232 patent claims:

1. A process for preparing a deutetrabenazine drug product in the form of a tablet,

that has no more than 0.4 area-% of Compound 2 relative to the concentration of deutetrabenazine in the drug product after storage at room temperature for one month, comprising:

obtaining a deutetrabenazine drug substance comprising Compound 2 in an

amount that is not more than 0.15 area-%, relative to the concentration of the deutetrabenazine in the deutetrabenazine drug substance;
wherein the amount of Compound 2 is determined by an HPLC method comprising a C18, 150x4.6 mm, 3.5 µm column and a photodiode array/ultraviolet detector at 220 nm; and
admixing the deutetrabenazine drug substance with an excipient to produce the deutetrabenazine drug product in the form of a tablet;
wherein the deutetrabenazine drug product has no more than 0.4 area-% of Compound 2, relative to the concentration of deutetrabenazine in the drug product, based on a determination by the HPLC method, after the storage at room temperature for one month.

78. Claim 2 of the '232 patent claims:

2. A deutetrabenazine drug product in the form of a tablet produced according to the process of claim 1.

The '858 Patent

79.

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

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80. The '858 patent, entitled "Methods for the Treatment of Abnormal Involuntary Movement Disorders" (Exhibit J), duly and legally issued on June 25, 2024.

81. Auspex is the owner and assignee of the '858 patent.

82. The '858 patent lists as inventors David Stamler and Michael Huang.

83. The '858 patent is listed in connection with AUSTEDO® XR in the Orange Book.

84. Claim 1 of the '858 patent claims:

1. A method for treating abnormal involuntary movement in a subject comprising

a) administering to the subject an initial daily amount of deutetrabenazine of 12 mg per day;

b) determining after about one week the degree of control of abnormal involuntary movement achieved with the initial daily amount and the tolerability of the initial daily amount;

c) increasing a daily amount of the deutetrabenazine by 6 mg/day or

more to a subsequent daily amount if the degree of control of abnormal involuntary movement is inadequate and the daily amount is tolerable;
d) optionally, repeating step c) until the degree of control of abnormal involuntary movement is adequate and the daily amount of the deutetrabenazine is tolerable; and
e) optionally, if any daily amount is not tolerated, decreasing the daily amount by 6 mg/day or more to a subsequent daily amount.

The '075 Patent

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

86. The '075 patent, entitled "Osmotic Dosage Forms Comprising Deutetrabenazine
85.

and Methods of Use Thereof" (Exhibit K), duly and legally issued on March 31, 2026.

87. Auspex is the owner and assignee of the '075 patent.

88. The '075 patent lists as inventors Parag Shah, Mayank Joshi, Soumen Pattanayek, Divyang Patel, and Sandeep Pandita.

89. The '075 patent is listed in connection with AUSTEDO® XR in the Orange Book.

90. Claim 1 of the '075 patent claims:

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1. A method of administering a once-daily dose of deutetrabenazine in an osmotic dosage form for treating a hyperkinetic movement disorder in a subject in need thereof comprising:

orally administering to the subject, on a once daily basis, the osmotic dosage form, wherein the dosage form comprises

a) a tablet core comprising an active layer and a push layer, wherein the active layer comprises an amount of deutetrabenazine microparticles and an active layer control release agent, and wherein the push layer comprises an osmotic agent and a push layer control release agent, and an optional tablet seal coat on the outer surface of the tablet core;

b) a semipermeable layer surrounding the tablet core;

c) a port extending through the semipermeable layer into the tablet core;

and

d) an immediate release coating external to the semipermeable layer comprising a second amount of deutetrabenazine microparticles, wherein the dosage comprises from about 6 mg to about 48 mg deutetrabenazine in the form of deutetrabenazine microparticles and wherein about 70%-80% of the total amount of deutetrabenazine microparticles present in the dosage form is present within the active layer and wherein about 20%-30% of the total amount of deutetrabenazine microparticles present in the dosage form, is present within the immediate release coating; and wherein the deutetrabenazine microparticles have a D90 of 15 μm , a D50 10 μm , and/or a D10 of 3 μm .

The '598 Patent

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

92. The '598 patent, entitled "Osmotic Dosage Forms Comprising Deutetrabenazine 91.

and Methods of Use Thereof" (Exhibit L), duly and legally issued on April 14, 2026.

93. Auspex is the owner and assignee of the '598 patent.

94. The '598 patent lists as inventors Parag Shah, Mayank Joshi, Soumen Pattanayek, Divyang Patel, and Sandeep Pandita.

95. The '598 patent is listed in connection with AUSTEDO® XR in the Orange Book.

96. Claim 1 of the '598 patent claims:

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1. A method of transitioning a human subject being treated with a total daily dose of deutetrabenazine twice daily (bid) to the total daily dose as a deutetrabenazine once daily for control of abnormal involuntary movement, comprising:

a) administering to the human subject a last dose of the deutetrabenazine twice daily; and

b) the next day, administering to the human subject the total daily dose as a deutetrabenazine once daily osmotic dosage form, wherein the osmotic dosage form comprises:

a. a tablet core comprising an active layer and a push layer,

wherein the active layer comprises an amount of deutetrabenazine microparticles and an active layer control release agent, and wherein the push layer comprises an osmotic agent and a push layer control release agent, and an optional tablet seal coat on the outer surface of the tablet core;

- b. a semipermeable layer surrounding the tablet core;
- c. a port extending through the semipermeable layer into the tablet core; and
- d. an immediate release coating external to the semipermeable layer comprising a second amount of deutetrabenazine microparticles,

wherein the dosage comprises from about 6 mg to about 48 mg deutetrabenazine in the form of deutetrabenazine microparticles and wherein about 70%-80% of the total amount of deutetrabenazine microparticles present in the dosage form is present within the active layer and wherein about 20%-30% of the total amount of deutetrabenazine microparticles present in the dosage form, is present within the immediate release coating; wherein the deutetrabenazine microparticles have a D90 of 15 μm , a D50 10 μm , and/or a D10 of 3 μm , and wherein the control of the abnormal involuntary movement is maintained during the transitioning from the last dose of deutetrabenazine twice daily to the deutetrabenazine once daily osmotic dosage form.

INFRINGEMENT BY ALKEM

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

98. By letters dated April 23, 2026 and May 18, 2026 (collectively “Alkem’s Notice

97.

Letters”), Alkem notified Plaintiffs that it had filed a Paragraph IV Certification with respect to each of the Patents-in-Suit and was seeking approval from the FDA to engage in the commercial

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manufacture, use, offer for sale, sale, and/or importation of Alkem’s ANDA Products prior to the expiration of the Patents-in-Suit. On information and belief, Alkem’s ANDA contains Paragraph

IV Certifications asserting that the Patents-in-Suit will not be infringed by the manufacture, use, offer for sale, sale, or importation of Alkem's ANDA Products, and/or that the Patents-in-Suit are invalid and/or unenforceable.

99. The purpose of Alkem's submission of Alkem's ANDA was to obtain approval under the Federal Food, Drug and Cosmetic Act to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the Patents-in-Suit.

100.

In Alkem's Notice Letters, Alkem stated that the subject of Alkem's ANDA is deutetrabenazine extended release tablets, 6 mg, 12 mg, and 24 mg.

101.

In Alkem's Notice Letters, Alkem stated that the active ingredient of Alkem's ANDA Products is deutetrabenazine.

102.

In Alkem's Notice Letters, Alkem stated that the proposed dosage strengths of Alkem's ANDA Products are 6 mg, 12 mg, and 24 mg of deutetrabenazine.

103.

In Alkem's Notice Letters, Alkem stated that the dosage form of Alkem's ANDA Products is an oral extended-release tablet.

104.

In an exchange of correspondence, counsel for Plaintiffs and counsel for Alkem discussed Alkem's Offer of Confidential Access. The Parties did not agree on terms under which Plaintiffs could review, among other things, Alkem's ANDA and the Drug Master File referred to therein. As a result, Alkem did not produce those submissions or other documents and materials relevant to infringement that Plaintiffs requested.

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105. This Action is being commenced before the expiration of 45 days from the receipt of Alkem's Notice Letters.

COUNT I – INFRINGEMENT BY ALKEM

OF THE '780 PATENT UNDER 35 U.S.C. § 271(e)(2)

106. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

107. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '780 patent was an act of infringement of the '780 patent under 35 U.S.C. § 271(e)(2)(A).

108. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '780 patent, recited above, either literally or under the doctrine of equivalents.

109. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

110. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '780 patent, recited above.

111. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '780 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

112. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '780 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-

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infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '780 patent after approval of Alkem's ANDA.

113. The foregoing actions by Alkem constitute and/or will constitute infringement of the '780 patent, active inducement of infringement of the '780 patent, and contribution to the infringement by others of the '780 patent.

114. On information and belief, Alkem has acted with full knowledge of the '780 patent and without a reasonable basis for believing that it would not be liable for infringing the '780 patent, actively inducing infringement of the '780 patent, and contributing to the infringement by others of the '780 patent.

115. Unless Alkem is enjoined from infringing the '780 patent, actively inducing infringement of the '780 patent, and contributing to the infringement by others of the '780 patent,

Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT II – INFRINGEMENT BY ALKEM

OF THE '996 PATENT UNDER 35 U.S.C. § 271(e)(2)

116. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

117. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '996 patent was an act of infringement of the '996 patent under 35 U.S.C. § 271(e)(2)(A).

118. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '996 patent, recited above, either literally or under the doctrine of equivalents.

119. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

120. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '996 patent, recited above.

121. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '996 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

122. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '996 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '996 patent after approval of Alkem's ANDA.

123. The foregoing actions by Alkem constitute and/or will constitute infringement of the '996 patent, active inducement of infringement of the '996 patent, and contribution to the infringement by others of the '996 patent.

124. On information and belief, Alkem has acted with full knowledge of the '996 patent and without a reasonable basis for believing that it would not be liable for infringing the '996 patent, actively inducing infringement of the '996 patent, and contributing to the infringement by others of the '996 patent.

125. Unless Alkem is enjoined from infringing the '996 patent, actively inducing infringement of the '996 patent, and contributing to the infringement by others of the '996 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT III – INFRINGEMENT BY ALKEM

OF THE '386 PATENT UNDER 35 U.S.C. § 271(e)(2)

126. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

127. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '386 patent was an act of infringement of the '386 patent under 35 U.S.C. § 271(e)(2)(A).

128. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '386 patent, recited above, either literally or under the doctrine of equivalents.

129. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

130. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '386 patent, recited above.

131. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '386 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

132. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '386 patent and that

Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '386 patent after approval of Alkem's ANDA.

133. The foregoing actions by Alkem constitute and/or will constitute infringement of

the '386 patent, active inducement of infringement of the '386 patent, and contribution to the infringement by others of the '386 patent.

134. On information and belief, Alkem has acted with full knowledge of the '386 patent and without a reasonable basis for believing that it would not be liable for infringing the '386 patent, actively inducing infringement of the '386 patent, and contributing to the infringement by others of the '386 patent.

135. Unless Alkem is enjoined from infringing the '386 patent, actively inducing infringement of the '386 patent, and contributing to the infringement by others of the '386 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT IV – INFRINGEMENT BY ALKEM

OF THE '488 PATENT UNDER 35 U.S.C. § 271(e)(2)

136. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

137. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '488 patent was an act of infringement of the '488 patent under 35 U.S.C. § 271(e)(2)(A).

138. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '488 patent, recited above, either literally or under the doctrine of equivalents.

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139. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

140. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '488 patent, recited above.

141. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '488 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

142. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '488 patent and that

Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '488 patent after approval of Alkem's ANDA.

143. The foregoing actions by Alkem constitute and/or will constitute infringement of the '488 patent, active inducement of infringement of the '488 patent, and contribution to the infringement by others of the '488 patent.

144. On information and belief, Alkem has acted with full knowledge of the '488 patent and without a reasonable basis for believing that it would not be liable for infringing the '488 patent, actively inducing infringement of the '488 patent, and contributing to the infringement by others of the '488 patent.

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145. Unless Alkem is enjoined from infringing the '488 patent, actively inducing infringement of the '488 patent, and contributing to the infringement by others of the '488 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT V – INFRINGEMENT BY ALKEM

OF THE '772 PATENT UNDER 35 U.S.C. § 271(e)(2)

146. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

147. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '772 patent was an act of infringement of the '772 patent under 35 U.S.C. § 271(e)(2)(A).

148. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '772 patent, recited above, either literally or under the doctrine of equivalents.

149. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

150. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '772 patent, recited above.

151. On information and belief, Alkem plans and intends to, and will, actively induce

infringement of the '772 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

152. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '772 patent and that

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Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '772 patent after approval of Alkem's ANDA.

153. The foregoing actions by Alkem constitute and/or will constitute infringement of the '772 patent, active inducement of infringement of the '772 patent, and contribution to the infringement by others of the '772 patent.

154. On information and belief, Alkem has acted with full knowledge of the '772 patent and without a reasonable basis for believing that it would not be liable for infringing the '772 patent, actively inducing infringement of the '772 patent, and contributing to the infringement by others of the '772 patent.

155. Unless Alkem is enjoined from infringing the '772 patent, actively inducing infringement of the '772 patent, and contributing to the infringement by others of the '772 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT VI – INFRINGEMENT BY ALKEM

OF THE '291 PATENT UNDER 35 U.S.C. § 271(e)(2)

156. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

157. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '291 patent was an act of infringement of the '291 patent under 35 U.S.C. § 271(e)(2)(A).

158. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '291 patent, recited above, either literally or under the doctrine of equivalents.

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159. On information and belief, Alkem will engage in the manufacture, use, offer for

sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

160. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '291 patent, recited above.

161. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '291 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

162. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '291 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '291 patent after approval of Alkem's ANDA.

163. The foregoing actions by Alkem constitute and/or will constitute infringement of the '291 patent, active inducement of infringement of the '291 patent, and contribution to the infringement by others of the '291 patent.

164. On information and belief, Alkem has acted with full knowledge of the '291 patent and without a reasonable basis for believing that it would not be liable for infringing the '291 patent, actively inducing infringement of the '291 patent, and contributing to the infringement by others of the '291 patent.

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165. Unless Alkem is enjoined from infringing the '291 patent, actively inducing infringement of the '291 patent, and contributing to the infringement by others of the '291 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT VII – INFRINGEMENT BY ALKEM

OF THE '917 PATENT UNDER 35 U.S.C. § 271(e)(2)

166. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

167. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '917 patent was an act of infringement of the '917 patent under 35 U.S.C. § 271(e)(2)(A).

168. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '917 patent, recited above, either literally or under the doctrine of equivalents.

169. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

170. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '917 patent, recited above.

171. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '917 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

172. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '917 patent and that

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Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '917 patent after approval of Alkem's ANDA.

173. The foregoing actions by Alkem constitute and/or will constitute infringement of the '917 patent, active inducement of infringement of the '917 patent, and contribution to the infringement by others of the '917 patent.

174. On information and belief, Alkem has acted with full knowledge of the '917 patent and without a reasonable basis for believing that it would not be liable for infringing the '917 patent, actively inducing infringement of the '917 patent, and contributing to the infringement by others of the '917 patent.

175. Unless Alkem is enjoined from infringing the '917 patent, actively inducing infringement of the '917 patent, and contributing to the infringement by others of the '917 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT VIII – INFRINGEMENT BY ALKEM

OF THE '244 PATENT UNDER 35 U.S.C. § 271(e)(2)

176. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

177. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '244 patent was an act of infringement of the '244 patent under 35 U.S.C. § 271(e)(2)(A).

178. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '244 patent, recited above, either literally or under the doctrine of equivalents.

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179. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

180. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '244 patent, recited above.

181. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '244 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

182. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '244 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '244 patent after approval of Alkem's ANDA.

183. The foregoing actions by Alkem constitute and/or will constitute infringement of the '244 patent, active inducement of infringement of the '244 patent, and contribution to the infringement by others of the '244 patent.

184. On information and belief, Alkem has acted with full knowledge of the '244 patent and without a reasonable basis for believing that it would not be liable for infringing the '244 patent, actively inducing infringement of the '244 patent, and contributing to the infringement by others of the '244 patent.

185. Unless Alkem is enjoined from infringing the '244 patent, actively inducing infringement of the '244 patent, and contributing to the infringement by others of the '244 patent,

Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT IX – INFRINGEMENT BY ALKEM

OF THE '232 PATENT UNDER 35 U.S.C. § 271(e)(2)

186. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

187. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '232 patent was an act of infringement of the '232 patent under 35 U.S.C. § 271(e)(2)(A).

188. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claims 1 and 2 of the '232 patent, recited above, either literally or under the doctrine of equivalents.

189. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

190. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claims 1 and 2 of the '232 patent, recited above.

191. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '232 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

192. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '232 patent and that

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Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '232 patent after approval of Alkem's ANDA.

193. The foregoing actions by Alkem constitute and/or will constitute infringement of the '232 patent, active inducement of infringement of the '232 patent, and contribution to the infringement by others of the '232 patent.

194. On information and belief, Alkem has acted with full knowledge of the '232 patent and without a reasonable basis for believing that it would not be liable for infringing the '232

patent, actively inducing infringement of the '232 patent, and contributing to the infringement by others of the '232 patent.

195. Unless Alkem is enjoined from infringing the '232 patent, actively inducing infringement of the '232 patent, and contributing to the infringement by others of the '232 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT X – INFRINGEMENT BY ALKEM

OF THE '858 PATENT UNDER 35 U.S.C. § 271(e)(2)

196. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

197. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '858 patent was an act of infringement of the '858 patent under 35 U.S.C. § 271(e)(2)(A).

198. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '858 patent, recited above, either literally or under the doctrine of equivalents.

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199. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

200. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '858 patent, recited above.

201. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '858 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

202. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '858 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '858 patent after approval of Alkem's ANDA.

203. The foregoing actions by Alkem constitute and/or will constitute infringement of

the '858 patent, active inducement of infringement of the '858 patent, and contribution to the infringement by others of the '858 patent.

204. On information and belief, Alkem has acted with full knowledge of the '858 patent and without a reasonable basis for believing that it would not be liable for infringing the '858 patent, actively inducing infringement of the '858 patent, and contributing to the infringement by others of the '858 patent.

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205. Unless Alkem is enjoined from infringing the '858 patent, actively inducing infringement of the '858 patent, and contributing to the infringement by others of the '858 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XI – INFRINGEMENT BY ALKEM

OF THE '075 PATENT UNDER 35 U.S.C. § 271(e)(2)

206. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

207. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '075 patent was an act of infringement of the '075 patent under 35 U.S.C. § 271(e)(2)(A).

208. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '075 patent, recited above, either literally or under the doctrine of equivalents.

209. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

210. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '075 patent, recited above.

211. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '075 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

212. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '075 patent and that

Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '075 patent after approval of Alkem's ANDA.

213. The foregoing actions by Alkem constitute and/or will constitute infringement of the '075 patent, active inducement of infringement of the '075 patent, and contribution to the infringement by others of the '075 patent.

214. On information and belief, Alkem has acted with full knowledge of the '075 patent and without a reasonable basis for believing that it would not be liable for infringing the '075 patent, actively inducing infringement of the '075 patent, and contributing to the infringement by others of the '075 patent.

215. Unless Alkem is enjoined from infringing the '075 patent, actively inducing infringement of the '075 patent, and contributing to the infringement by others of the '075 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XII – INFRINGEMENT BY ALKEM

OF THE '598 PATENT UNDER 35 U.S.C. § 271(e)(2)

216. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

217. Alkem's submission of Alkem's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Products prior to the expiration of the '598 patent was an act of infringement of the '598 patent under 35 U.S.C. § 271(e)(2)(A).

218. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '598 patent, recited above, either literally or under the doctrine of equivalents.

219. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products immediately and imminently upon FDA approval of Alkem's ANDA.

220. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of

the '598 patent, recited above.

221. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '598 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

222. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '598 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '598 patent after approval of Alkem's ANDA.

223. The foregoing actions by Alkem constitute and/or will constitute infringement of the '598 patent, active inducement of infringement of the '598 patent, and contribution to the infringement by others of the '598 patent.

224. On information and belief, Alkem has acted with full knowledge of the '598 patent and without a reasonable basis for believing that it would not be liable for infringing the '598 patent, actively inducing infringement of the '598 patent, and contributing to the infringement by others of the '598 patent.

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225. Unless Alkem is enjoined from infringing the '598 patent, actively inducing infringement of the '598 patent, and contributing to the infringement by others of the '598 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XIII – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '780 PATENT

226. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

227. Alkem has knowledge of the '780 patent.

228. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '780 patent, recited above, either literally or under the doctrine of equivalents.

229. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

230. On information and belief, the use of Alkem's ANDA Products in accordance with

and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '780 patent, recited above.

231. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '780 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

232. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '780 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '780 patent after approval of Alkem's ANDA.

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233. The foregoing actions by Alkem constitute and/or will constitute infringement of the '780 patent, active inducement of infringement of the '780 patent, and contribution to the infringement by others of the '780 patent.

234. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '780 patent, actively inducing infringement of the '780 patent, and contributing to the infringement by others of the '780 patent.

235. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '780 patent are valid.

236. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '780 patent and that the claims of the '780 patent are valid.

237. Alkem should be enjoined from infringing the '780 patent, actively inducing infringement of the '780 patent, and contributing to the infringement by others of the '780 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XIV – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '996 PATENT

238. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

239. Alkem has knowledge of the '996 patent.

240. On information and belief, the manufacture, use, offer for sale, sale, marketing,

distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '996 patent, recited above, either literally or under the doctrine of equivalents.

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241. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

242. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '996 patent, recited above.

243. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '996 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

244. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '996 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '996 patent after approval of Alkem's ANDA.

245. The foregoing actions by Alkem constitute and/or will constitute infringement of the '996 patent, active inducement of infringement of the '996 patent, and contribution to the infringement by others of the '996 patent.

246. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '996 patent, actively inducing infringement of the '996 patent, and contributing to the infringement by others of the '996 patent.

247. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '996 patent are valid.

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248. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '996 patent and that the claims of the '996 patent are valid.

249. Alkem should be enjoined from infringing the '996 patent, actively inducing infringement of the '996 patent, and contributing to the infringement by others of the '996 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XV – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '386 PATENT

250. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

251. Alkem has knowledge of the '386 patent.

252. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '386 patent, recited above, either literally or under the doctrine of equivalents.

253. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

254. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '386 patent, recited above.

255. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '386 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

256. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '386 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '386 patent after approval of Alkem's ANDA.

257. The foregoing actions by Alkem constitute and/or will constitute infringement of the '386 patent, active inducement of infringement of the '386 patent, and contribution to the infringement by others of the '386 patent.

258. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '386 patent, actively inducing infringement of the '386 patent, and contributing to the infringement by others of the '386 patent.

259. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '386 patent are valid.

260. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '386 patent and that the claims of the '386 patent are valid.

261. Alkem should be enjoined from infringing the '386 patent, actively inducing infringement of the '386 patent, and contributing to the infringement by others of the '386 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XVI – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '488 PATENT

262. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

263. Alkem has knowledge of the '488 patent.

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264. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '488 patent, recited above, either literally or under the doctrine of equivalents.

265. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

266. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '488 patent, recited above.

267. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '488 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

268. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '488 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '488 patent after approval of Alkem's ANDA.

269. The foregoing actions by Alkem constitute and/or will constitute infringement of the '488 patent, active inducement of infringement of the '488 patent, and contribution to the

infringement by others of the '488 patent.

270. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '488 patent, actively inducing infringement of the '488 patent, and contributing to the infringement by others of the '488 patent.

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271. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '488 patent are valid.

272. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '488 patent and that the claims of the '488 patent are valid.

273. Alkem should be enjoined from infringing the '488 patent, actively inducing infringement of the '488 patent, and contributing to the infringement by others of the '488 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XVII – DECLARATORY JUDGMENT OF INFRINGEMENT
BY ALKEM OF THE '772 PATENT

274. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

275. Alkem has knowledge of the '772 patent.

276. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '772 patent, recited above, either literally or under the doctrine of equivalents.

277. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

278. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '772 patent, recited above.

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279. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '772 patent when Alkem's ANDA is approved, and plans and intends to, and

will, do so after approval.

280. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '772 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '772 patent after approval of Alkem's ANDA.

281. The foregoing actions by Alkem constitute and/or will constitute infringement of the '772 patent, active inducement of infringement of the '772 patent, and contribution to the infringement by others of the '772 patent.

282. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '772 patent, actively inducing infringement of the '772 patent, and contributing to the infringement by others of the '772 patent.

283. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '772 patent are valid.

284. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '772 patent and that the claims of the '772 patent are valid.

285. Alkem should be enjoined from infringing the '772 patent, actively inducing infringement of the '772 patent, and contributing to the infringement by others of the '772 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

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COUNT XVIII – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '291 PATENT

286. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

287. Alkem has knowledge of the '291 patent.

288. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '291 patent, recited above, either literally or under the doctrine of equivalents.

289. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their

proposed labeling upon FDA approval of Alkem's ANDA.

290. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '291 patent, recited above.

291. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '291 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

292. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '291 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '291 patent after approval of Alkem's ANDA.

293. The foregoing actions by Alkem constitute and/or will constitute infringement of the '291 patent, active inducement of infringement of the '291 patent, and contribution to the infringement by others of the '291 patent.

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294. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '291 patent, actively inducing infringement of the '291 patent, and contributing to the infringement by others of the '291 patent.

295. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '291 patent are valid.

296. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '291 patent and that the claims of the '291 patent are valid.

297. Alkem should be enjoined from infringing the '291 patent, actively inducing infringement of the '291 patent, and contributing to the infringement by others of the '291 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XIX – DECLARATORY JUDGMENT OF INFRINGEMENT
BY ALKEM OF THE '917 PATENT

298. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

299. Alkem has knowledge of the '917 patent.

300. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '917 patent, recited above, either literally or under the doctrine of equivalents.

301. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

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302. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '917 patent, recited above.

303. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '917 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

304. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '917 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '917 patent after approval of Alkem's ANDA.

305. The foregoing actions by Alkem constitute and/or will constitute infringement of the '917 patent, active inducement of infringement of the '917 patent, and contribution to the infringement by others of the '917 patent.

306. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '917 patent, actively inducing infringement of the '917 patent, and contributing to the infringement by others of the '917 patent.

307. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '917 patent are valid.

308. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '917 patent and that the claims of the '917 patent are valid.

309. Alkem should be enjoined from infringing the '917 patent, actively inducing infringement of the '917 patent, and contributing to the infringement by others of the '917 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XX – DECLARATORY JUDGMENT OF INFRINGEMENT
BY ALKEM OF THE '244 PATENT

310. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

311. Alkem has knowledge of the '244 patent.

312. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '244 patent, recited above, either literally or under the doctrine of equivalents.

313. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

314. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '244 patent, recited above.

315. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '244 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

316. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '244 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '244 patent after approval of Alkem's ANDA.

317. The foregoing actions by Alkem constitute and/or will constitute infringement of the '244 patent, active inducement of infringement of the '244 patent, and contribution to the infringement by others of the '244 patent.

318. On information and belief, Alkem has acted without a reasonable basis for believing

that it would not be liable for infringing the '244 patent, actively inducing infringement of the '244 patent, and contributing to the infringement by others of the '244 patent.

319. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '244 patent are valid.

320. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '244 patent and that the claims of the '244 patent are valid.

321. Alkem should be enjoined from infringing the '244 patent, actively inducing infringement of the '244 patent, and contributing to the infringement by others of the '244 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XXI – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '232 PATENT

322. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

323. Alkem has knowledge of the '232 patent.

324. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claims 1 and 2 of the '232 patent, recited above, either literally or under the doctrine of equivalents.

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325. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

326. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claims 1 and 2 of the '232 patent, recited above.

327. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '232 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

328. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '232 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-

infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '232 patent after approval of Alkem's ANDA.

329. The foregoing actions by Alkem constitute and/or will constitute infringement of the '232 patent, active inducement of infringement of the '232 patent, and contribution to the infringement by others of the '232 patent.

330. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '232 patent, actively inducing infringement of the '232 patent, and contributing to the infringement by others of the '232 patent.

331. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '232 patent are valid.

332. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '232 patent and that the claims of the '232 patent are valid.

333. Alkem should be enjoined from infringing the '232 patent, actively inducing infringement of the '232 patent, and contributing to the infringement by others of the '232 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XXII – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '858 PATENT

334. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

335. Alkem has knowledge of the '858 patent.

336. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '858 patent, recited above, either literally or under the doctrine of equivalents.

337. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

338. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '858 patent, recited above.

339. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '858 patent when Alkem's ANDA is approved, and plans and intends to, and

will, do so after approval.

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340. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '858 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '858 patent after approval of Alkem's ANDA.

341. The foregoing actions by Alkem constitute and/or will constitute infringement of the '858 patent, active inducement of infringement of the '858 patent, and contribution to the infringement by others of the '858 patent.

342. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '858 patent, actively inducing infringement of the '858 patent, and contributing to the infringement by others of the '858 patent.

343. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '858 patent are valid.

344. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '858 patent and that the claims of the '858 patent are valid.

345. Alkem should be enjoined from infringing the '858 patent, actively inducing infringement of the '858 patent, and contributing to the infringement by others of the '858 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XXIII – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '075 PATENT

346. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

347. Alkem has knowledge of the '075 patent.

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348. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '075 patent, recited above, either literally or under the doctrine of equivalents.

349. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

350. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '075 patent, recited above.

351. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '075 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

352. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '075 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '075 patent after approval of Alkem's ANDA.

353. The foregoing actions by Alkem constitute and/or will constitute infringement of the '075 patent, active inducement of infringement of the '075 patent, and contribution to the infringement by others of the '075 patent.

354. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '075 patent, actively inducing infringement of the '075 patent, and contributing to the infringement by others of the '075 patent.

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355. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '075 patent are valid.

356. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '075 patent and that the claims of the '075 patent are valid.

357. Alkem should be enjoined from infringing the '075 patent, actively inducing infringement of the '075 patent, and contributing to the infringement by others of the '075 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT XXIV – DECLARATORY JUDGMENT OF INFRINGEMENT

BY ALKEM OF THE '598 PATENT

358. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

359. Alkem has knowledge of the '598 patent.

360. On information and belief, the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products would infringe at least claim 1 of the '598 patent, recited above, either literally or under the doctrine of equivalents.

361. On information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Products with their proposed labeling upon FDA approval of Alkem's ANDA.

362. On information and belief, the use of Alkem's ANDA Products in accordance with and as directed by Alkem's proposed labeling for those products would infringe at least claim 1 of the '598 patent, recited above.

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363. On information and belief, Alkem plans and intends to, and will, actively induce infringement of the '598 patent when Alkem's ANDA is approved, and plans and intends to, and will, do so after approval.

364. On information and belief, Alkem knows that Alkem's ANDA Products and their proposed labeling are especially made or adapted for use in infringing the '598 patent and that Alkem's ANDA Products and their proposed labeling are not suitable for substantial non-infringing use. On information and belief, Alkem plans and intends to, and will, contribute to infringement of the '598 patent after approval of Alkem's ANDA.

365. The foregoing actions by Alkem constitute and/or will constitute infringement of the '598 patent, active inducement of infringement of the '598 patent, and contribution to the infringement by others of the '598 patent.

366. On information and belief, Alkem has acted without a reasonable basis for believing that it would not be liable for infringing the '598 patent, actively inducing infringement of the '598 patent, and contributing to the infringement by others of the '598 patent.

367. Accordingly, there is a real, substantial, and continuing case or controversy between Plaintiffs and Alkem regarding whether the claims of the '598 patent are valid.

368. Plaintiffs should be granted a declaratory judgment that the making, using, sale, offer for sale, and importation into the United States of Alkem's ANDA Products with their

proposed labeling would infringe, actively induce the infringement of, and contribute to the infringement by others of the '598 patent and that the claims of the '598 patent are valid.

369. Alkem should be enjoined from infringing the '598 patent, actively inducing infringement of the '598 patent, and contributing to the infringement by others of the '598 patent; otherwise, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

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PRAYER FOR RELIEF

WHEREFORE, Plaintiffs request the following relief:

- (a) A judgment that Alkem has infringed, will infringe, and will induce and contribute to infringement of each of the Patents-in-Suit;
- (b) A judgment that the Patents-in-Suit are valid and enforceable;
- (c) A judgment pursuant to, among other things, 35 U.S.C. § 271(e)(4)(A) ordering that the effective date of any FDA approval for Alkem to make, use, offer for sale, sell, market, distribute, or import Alkem's ANDA Products, or any product or compound the making, using, offering for sale, sale, marketing, distribution, or importation of which infringes the Patents-in-Suit, shall not be earlier than the latest of the expiration dates of the Patents-in-Suit, inclusive of any extension(s) and additional period(s) of regulatory or patent exclusivity;
- (d) A preliminary and permanent injunction pursuant to, among other things, 35 U.S.C. §§ 271(e)(4)(B) and 283 enjoining Alkem, its officers, agents, servants, employees and attorneys, and all persons acting in concert with them, from making, using, selling, offering for sale, marketing, distributing, or importing Alkem's ANDA Products, or any product the making, using, offering for sale, sale, marketing, distribution, or importation of which infringes the Patents-in-Suit, or the inducement of or the contribution to any of the foregoing, prior to the latest of the expiration dates of the Patents-in-Suit, inclusive of any extension(s) and additional period(s) of regulatory or patent exclusivity.
- (e) A judgment declaring that making, using, selling, offering for sale, marketing, distributing, or importing Alkem's ANDA Products, or any product or compound the making, using, offering for sale, sale, marketing, distribution, or importation of which

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infringes the Patents-in-Suit, prior to the expiration date of the Patents-in-Suit, respectively, will infringe, actively induce infringement of, and/or contribute to the infringement by others of the Patents-in-Suit;

(f) An award of Plaintiffs' damages or other monetary relief to compensate Plaintiffs if Alkem engages in the manufacture, use, offer for sale, sale, marketing, distribution, or importation of Alkem's ANDA Products, or any product the making, using, offering for sale, sale, marketing, distribution, or importation of which infringes the Patents-in-Suit, or the inducement of or the contribution to any of the foregoing, prior to the latest of the expiration dates of the Patents-in-Suit, inclusive of any extension(s) and additional period(s) of regulatory or patent exclusivity, in accordance with 35 U.S.C. § 271(e)(4)(C);

(g) A declaration that this case is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(h) An award of Plaintiffs' costs and expenses in this action; and

(i) Such further and other relief as this Court may deem just and proper.

Dated: June 5, 2026

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s/ Liza M. Walsh

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Local Rule 11.2 Certification

We hereby certify that, to the best of our knowledge, the matter in controversy is not the subject of any action pending in any court or of any pending arbitration or administrative proceeding.

Dated: June 5, 2026

WALSH PIZZI O'REILLY FALANGA LLP

s/ Liza M. Walsh

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Local Rule 201.1 Certification

We hereby certify that the above captioned matter is not subject to compulsory arbitration in that Plaintiffs seek, inter alia, injunctive relief.

Dated: June 5, 2026

WALSH PIZZI O'REILLY FALANGA LLP

s/ Liza M. Walsh

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